

conduct; (5) the plaintiff was harmed; and (6) defendant's conduct was a substantial factor in causing the harm. (*Gavrielle A. v. County of Orange* (2017) 10 Cal.App.5th 1268, 1291; CACI 3064.)

Here, Plaintiff alleges, upon information and belief, that one of the officers used deadly force against Plaintiff because he is a Latino male and the officer is biased against Latino men. Rather than taking the time to evaluate the situation, the officer immediately perceived Plaintiff as a threat due to Plaintiff's outward appearance, which was a substantial factor in his decision to use excessive force. Thus, Plaintiff alleges that the officer's actions were motivated by Plaintiff's protected characteristics. (Compl., ¶¶74-76, 78.) While less-than overly specific, the Court is inclined to find that Plaintiff has sufficiently pleaded the cause for a Ralph Act violation.

12. *Romero v. Bridgestone Americas Tire Operations LLC, et al*, Case No. CIVSB2435208
Defendant Impact's Demurrer to First Amended Complaint
8/27/26, 9:00 a.m., Dept. S-17

Tentative Ruling

The Court would **OVERRULE**. A responsive pleading will be filed within 30 days.

Case Summary

This is a representative action for civil penalties pursuant to the Private Attorneys General Act (PAGA). Plaintiff alleges that he was employed by Bridgestone as an hourly-paid, non-exempt forklift driver from approximately 2015 to July 16, 2025. He further alleges that Defendant Impact was engaged in the business of supplying hourly-paid or non-exempt employees to Defendant Bridgestone. Plaintiff asserts that Impact employed, paid wages to, and maintained payroll records for the hourly-paid or non-exempt employees who were assigned to work for Bridgestone. On September 7, 2024, Plaintiff issued a notice to the Labor and Workforce Development Agency (LWDA) in anticipation of a PAGA claim. On November 22, 2024, he filed this instant action. The operative First Amended Complaint (FAC) was filed on April 1, 2026, seeking civil penalties pursuant to PAGA.

Statement of the Law

A demurrer challenges defects that appear on the face of the pleading, which includes incorporated exhibits, or from matters outside the pleading that are judicially noticeable. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318; *Frantz v. Blackwell* (1987) 189 Cal.App.3d 91, 94.) No other extrinsic evidence can be considered. (*Ion Equipment Corp. v. Nelson* (1980) 110 Cal.App.3d 868, 881.) A demurrer predicated on insufficient facts to constitute a cause of action, pursuant to Code of Civil Procedure section 430.10(e), should be granted only when the facts alleged on the face of the complaint fails to state any valid claim entitled to the plaintiff. (*Gruenberg v. Aetna Ins. Co.* (1973) 9 Cal.3d 566, 572.)

Analysis

Here, substantively, Defendant Impact argues that the FAC fails to establish Plaintiff Romero's standing as an aggrieved employee to bring a PAGA action against Defendant Impact because, even accepting

Plaintiff Romero's allegations as true, he fails to allege that he was an employee of Defendant Impact, a threshold requirement to plead standing under PAGA.

In order to allege standing and state a claim as a representative under PAGA, the plaintiff must allege he was an aggrieved employee, defined as a person who was employed by the alleged violator and personally suffered each of the violations alleged. (Labor Code., § 2699(c)(1).) Accordingly, at the threshold, a plaintiff who was not employed by the alleged violator is not an aggrieved employee and does not have standing to bring a PAGA claim. (*Ibid.*)

Contrary to Defendant Impact's arguments and assertions, Plaintiff Romero's FAC alleges sufficient facts to support that Plaintiff Romero was employed jointly by both Defendants: Plaintiff Romero alleges that Defendants participated in the doing of the acts hereinafter alleged to have been done by the named Defendant; and furthermore, Defendants, and each of them, were the agents, servants, and employees of each of the other Defendants, as well as the agents of all Defendants, and at all times herein mentioned, were acting within the course and scope of said agency and employment. (FAC, ¶6.)

Plaintiff Romero further alleges that at all times material hereto, each of the Defendants named herein was the agent, employee, alter ego or worked in concert with each of the other co-Defendants and was acting within the course and scope of such agency, employment, joint venture, or concerted activity. To the extent said acts, conduct, and omissions were perpetrated by certain Defendants, each of the remaining Defendants confirmed and ratified said acts, conduct, and omissions of the acting Defendants. (FAC, ¶7.) Defendants, and each of them, were members of, and engaged in, a joint venture, partnership, and common enterprise, and acting within the course and scope of, and in pursuance of, said joint venture, partnership, and common enterprise. (FAC, ¶8.) The acts and omissions of various Defendants, and each of them, concurred and contributed to the various acts and omissions of each and all of the other Defendants in proximately causing the injuries and damages as alleged. (FAC, ¶9.)
